

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Whitney Beber	Team: Squad #06	CCRB Case #: 201900623	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 12/04/2018 7:57 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/19/2021	Precinct: 73		
Date/Time CV Reported Wed, 01/16/2019 8:15 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/22/2019 11:06 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			69 PCT
2. SGT Nelson Ayala	04705	948015	069 PCT
3. DTS Marcel Francis	05943	948983	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brandon Agosto	20663	958220	069 PCT
2. POM Syed Mahmud	07197	956865	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Nelson Ayala	Abuse: Sergaent Nelson Ayala stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . DTS Marcel Francis	Abuse: Detective Marcel Francis stopped the vehicle in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . DTS Marcel Francis	Abuse: Detective Marcel Francis searched the vehicle in which § 87(2)(b) was an occupant.	C . Unsubstantiated
D . Officers	Abuse: Officers frisked § 87(2)(b)	D . Officer(s) Unidentified
E . SGT Nelson Ayala	Abuse: Sergeant Nelson Ayala entered § 87(2)(b) in Brooklyn.	E . Exonerated
F . SGT Nelson Ayala	Abuse: Sergeant Nelson Ayala searched § 87(2)(b) in Brooklyn.	F . Exonerated
G . SGT Nelson Ayala	Abuse: Sergeant Nelson Ayala interfered with § 87(2)(b)'s use of a recording device.	G . Unsubstantiated
H . SGT Nelson Ayala	Abuse: Sergeant Nelson Ayala threatened to arrest § 87(2)(b) and § 87(2)(b)	H . Exonerated

Case Summary

§ 87(2)(b) filed the following complaint with the Internal Affairs Bureau under original log number 2019-2077, over the phone. On January 16, 2019, the CCRB received § 87(2)(b)'s complaint.

On December 4, 2018, at approximately 7:57 p.m., in the vicinity of § 87(2)(b) in Brooklyn, § 87(2)(b) pulled out of a parking space and started to drive around the block, when he was stopped by Sergeant Nelson Ayala and Detective Marcel Francis of the 69th Precinct (**Allegations A and B, Abuse of Authority**, § 87(2)(g)). He was ordered to step outside of his vehicle. Police Officer Francis searched § 87(2)(b)'s vehicle (**Allegation C, Abuse of Authority**, § 87(2)(g)). At the back of his vehicle officers frisked him (**Allegation D, Abuse of Authority**, § 87(2)(g)). Sgt. Ayala asked to check § 87(2)(b)'s firearm and § 87(2)(b) walked officers to his residence at § 87(2)(b). Sergeant Ayala entered and searched § 87(2)(b) (**Allegations E and F Abuse of Authority**, § 87(2)(g)). § 87(2)(b)'s son, § 87(2)(b) recorded a portion of the incident inside § 87(2)(b) and Sgt. Ayala allegedly told him that he could not record, (**Allegation G, Abuse of Authority**, § 87(2)(g)). While at the residence, Sgt. Ayala allegedly told § 87(2)(b)'s other son, § 87(2)(b) if he lied about having the gun, did not tell them about it but they found the gun, that § 87(2)(b) and § 87(2)(b) were “going down for the same gun,” (**Allegation H, Abuse of Authority**, § 87(2)(g)). § 87(2)(b) was arrested and the arrest is sealed.

Video footage was obtained from § 87(2)(b) (BR01-03).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Nelson Ayala stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Detective Marcel Francis stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(g).

It is undisputed that on December 4, 2018, at approximately 7:57 p.m. § 87(2)(b) pulled out of a parking space and was stopped by Det. Francis and Sgt. Ayala for allegedly not turning on his headlights. § 87(2)(b) was warned, admonished and not issued a summons.

§ 87(2)(b) stated that he started his vehicle, put on his turn signal and pulled out of the parking space. § 87(2)(b) believed his headlights were on. Sgt. Ayala and Det. Francis approached his vehicle. An officer told him that he did not turn on his headlights.

§ 87(2)(b) was outside of § 87(2)(b) holding a parking spot for his father, § 87(2)(b). He testified that the headlights of the vehicle his father drove turn on automatically when it is dark outside. He did not remember if § 87(2)(b) used his indicators when he pulled out of a parking space. Two unmarked vehicles stopped § 87(2)(b).

§ 87(2)(b) drove to where § 87(2)(b) was stopped by Det. Francis, Sgt. Ayala, PO Brandon Agosto and PO Syed Mahmud of the 69th Precinct. An officer told him § 87(2)(b) was stopped because one headlight did not work. Another officer, who remained unidentified, stated that the indicator was not on.

§ 87(2)(b) a relative of one of § 87(2)(b)'s neighbors, who § 87(2)(b) identified as a witness, stated that he did not remember if the lights of § 87(2)(b)'s vehicle were on. § 87(2)(b), § 87(2)(b)'s nephew, who he identified as a witness, stated that he saw § 87(2)(b) leave in his vehicle and that his headlights were on. § 87(2)(b) made this observation from outside of § 87(2)(b). § 87(2)(b) did not know if § 87(2)(b) signaled when he left his parking space.

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. Ayala conducted a surveillance operation with Det. Francis with the search warrant in hand for § 87(2)(b), approximately half a block from § 87(2)(b). While they conducted surveillance, he observed § 87(2)(b) fail to use his signal after he pulled out of a parking space. Sgt. Ayala stopped the vehicle in which § 87(2)(b) was an occupant. Stopping § 87(2)(b) was not a tactical strategy to interface with the occupants of § 87(2)(b) and § 87(2)(b) was not committing any other traffic violations at the time. § 87(2)(b) was warned and admonished.

Det. Francis, who was part of the field intelligence team, conducted surveillance at § 87(2)(b) because they had a search warrant to execute there. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Det. Francis testified that § 87(2)(b) did not signal or activate his headlights. Det. Francis knew § 87(2)(b) had a licensed firearm for his house. Det. Francis wanted to ensure § 87(2)(b) did not have the gun on him as well. Det. Francis and Sgt. Ayala stopped § 87(2)(b). There were no other reasons for which he was stopped.

PO Agosto and PO Mahmud are consistent that they responded to the vehicle stop after Det. Francis and Sgt. Ayala had already stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(g)

§ 87(2)(g)

Allegation (C) Abuse of Authority: Detective Marcel Francis searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(g) .

§ 87(2)(b) captured a portion of this incident using his cellphone. In the video at the 1:40 minute time stamp in video player, an officer is seen inside the back seat of a white SUV, which the investigation identified as § 87(2)(b)'s vehicle. It is not clear where he is looking. At 2:29 minute time stamp in video player, a black male officer, who the investigation identified as Det. Francis, leans into the car through the driver's side door. He runs his hand over the closed glove compartment and looks on the driver's seat. At 2:48 minutes, he uses a flashlight to look through the front passenger's window and then opens the door. His body obstructs exactly where he looks, until 3:02 where leans down into the space between the glovebox and the seat. At 3:16 minutes, he opens the back-passenger door and enters. It is not clear where he looks (BR 01).

After § 87(2)(b) pulled over, he turned his car off, rolled down the windows, and put his hands out of the window. He did not mention that he had or reached for a knife. Sgt. Ayala and Det. Francis approached his vehicle. An officer asked for his license and registration and then asked him to exit the vehicle, which he did. § 87(2)(b) did not mention having any weapons in the vehicle or reaching for anything when officers approached his vehicle. § 87(2)(b) testified that he saw Det. Francis search his vehicle but he did not see what they did inside. Another officer, who he did not describe or identify, entered his vehicle. However, § 87(2)(b) was at the back of the vehicle and faced away from his vehicle. When an officer asked him where his gun was, he replied it was in his house.

§ 87(2)(b) testified that Det. Francis searched the glovebox, the arm rests, under the seats, the sunvisor, under the mats and the trunk area. The officers did not ask permission to enter the vehicle or say why they entered the vehicle.

§ 87(2)(b) did not see any officer inside of § 87(2)(b)'s vehicle. § 87(2)(b) did not know if any officer entered § 87(2)(b)'s vehicle.

Det. Francis observed § 87(2)(b) reach for a sharp object in the center console within seconds of the stop. Det. Francis could not describe it beyond stating that originally it looked like a knife. § 87(2)(b)'s body language indicated he was angry but Det. Francis did not know what he did beside reach for the sharp object. Det. Francis instructed § 87(2)(b) to put the object down, as he did not, Det. Francis opened the driver's side door. Det. Francis did not remember if he obtained the object or if § 87(2)(b) put it down but at some point, Det. Francis took the object and put it in the vehicle. Det. Francis opened the driver's door because § 87(2)(b) picked up the sharp object and he wanted to recover the sharp object from § 87(2)(b). Det. Francis did not independently remember if § 87(2)(b)'s vehicle was searched. After he viewed the portion of the video which depicted him inside § 87(2)(b)'s vehicle, Det. Francis stated he was inside the vehicle because they knew § 87(2)(b) had the licensed firearm and that when Sgt. Ayala asked § 87(2)(b) the location of the firearm, he initially did not want to answer. As a result, he thought § 87(2)(b) had it in the vehicle with him.

Det. Francis did not know where inside the vehicle he searched, but acknowledged that the video captured him in the back of the video.

Sgt. Ayala did not independently remember if § 87(2)(b)'s vehicle was searched. PO Agosto did not remember seeing an officer inside of § 87(2)(b)'s vehicle.

PO Mahmud saw Det. Francis inside of § 87(2)(b)'s vehicle. But he did not remember where he entered the vehicle.

If information gathered during a stop reveals that there is substantial likelihood of a weapon being present in the vehicle which poses an actual and specific danger to the officer's safety, the officer would be justified in engaging in a limited intrusion into the suspect's vehicle- notwithstanding the suspect's inability to gain immediate access to that weapon. When determining whether an officer has reasonable suspicion to intrude into a stopped vehicle whose occupants have been removed and frisked, the court must focus on whether the police conduct was reasonable in view of the totality of the circumstances. A police officer's entry into a citizen's automobile and his inspection of personal effects located within must be reasonably related in scope and intensity to the circumstances which rendered their initiation permissible, People v Newman, 96 A.D. 3d 34 (2012) (BR04).

§ 87(2)(g)

§ 87(2)(g)

Allegation (D)- Abuse of Authority: Officers frisked § 87(2)(b)

While § 87(2)(b) stood at the back of his vehicle, two white male officers, who he could not describe, frisked his legs, torso and all over his body. The officers frisked the exterior of his pockets but did not enter his pockets.

§ 87(2)(b) testified that one officer frisked § 87(2)(b)'s torso, legs, arms, pockets, the outside of his crotch area. He also stated that the same officer searched § 87(2)(b)'s pockets.

§ 87(2)(b) stated that an officer asked to frisk § 87(2)(b) who consented to being frisked. § 87(2)(b) did not see any officer search § 87(2)(b) but he saw officers frisk § 87(2)(b)

§ 87(2)(b)'s side, back and front pants pockets. § 87(2)(b) did not see any officer frisk § 87(2)(b) or enter any of his pockets.

Det. Francis did not remember if he observed any bulges on § 87(2)(b). Det. Francis did not remember if § 87(2)(b) was frisked or searched at the back of his vehicle.

PO Agosto and PO Mahmud denied frisking § 87(2)(b). PO Mahmud did not see § 87(2)(b) frisked or searched.

Sgt. Ayala testified that while he did not remember who frisked § 87(2)(b) he was frisked at the back of his vehicle because the officers had prior knowledge he had a firearm.

Neither § 87(2)(b) nor Sgt. Ayala could describe the officer that frisked § 87(2)(b). All the officer denied having frisked § 87(2)(b).

§ 87(2)(g)

Allegation (E)-Abuse of Authority: Sergeant Nelson Ayala entered § 87(2)(b) in Brooklyn.

Allegation (F)-Abuse of Authority: Sergeant Nelson Ayala searched § 87(2)(b) in Brooklyn.

§ 87(2)(g)

It is undisputed that officers entered and searched § 87(2)(b) in Brooklyn.

Search warrant § 87(2)(b) was obtained by Police Officer Desiree Medina, who was not on scene during this incident. The Pre-Warrant Data Entry Form listed Sgt. Ayala as the supervising investigator who was on scene. Therefore, the entry and search allegations are pleaded against him (BR05).

The search warrant authorized a “No-Knock” entry and commanded any officer of the City of New York between the hours of 6:00 a.m. and 9:00 p.m. to search for the following property belonging to § 87(2)(b): a black 45 caliber semi-automatic pistol; ammunition; and documents concerning the ownership and recent occupation of the location inside § 87(2)(b). A search warrant application may contain a request that the search warrant authorize the executing police officer to enter premises to be searched without giving notice of his authority or purpose, Criminal Procedure Law 690.35 (BR14). Search warrants are to be executed between the hours of 6:00 a.m. and 9:00 p.m. within ten days of the search warrant being issued. The Warrant tracking system pre-warrant data entry form is to be prepared. Patrol Guide Section 221-17 (BR06).

§ 87(2)(g)

Allegation G-Abuse of Authority: Sergeant Nelson Ayala interfered with § 87(2)(b) s use of a recording device.

§ 87(2)(b) captured another portion of this incident inside of § 87(2)(b), using his cellphone. At three second time stamp of the video player, an officer says, “Right now you can’t record” (BR03).

§ 87(2)(b) stated that after Sgt. Ayala showed the warrant, he told him that it was illegal to record while a search warrant was in session and that he had to shut his phone off. § 87(2)(b) turned his phone off. He stated he did not want to record and get in trouble with the law.

Sgt. Ayala testified that he heard someone tell § 87(2)(b) after the search warrant was read, that he could not record while a search warrant was being conducted. Sgt. Ayala stated that as the search warrant was being read, § 87(2)(b) was not allowed to record any audio or video. Sgt. Ayala did not know who made the statement.

PO Agosto did not hear an officer tell § 87(2)(b) that it was illegal to record while a search warrant was in session or instruct him to turn off his phone. PO Agosto confirmed that someone is not allowed to record with their personal phone while a search warrant is in session. Neither PO Agosto nor PO Mahmud remembered § 87(2)(b) recording while inside § 87(2)(b).

Det. Francis did not remember if anyone recorded during the incident. Det. Francis did not tell § 87(2)(b) that he had to shut his phone off and he did not remember hearing that.

§ 87(2)(g)
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§ 87(2)(g)

Allegation H -Abuse of Authority: Sergeant Nelson Ayala threatened to arrest § 87(2)(b) and § 87(2)(b)

At the time of the incident, § 87(2)(b) and § 87(2)(b) all resided at § 87(2)(b).

§ 87(2)(b) stated that one of the officers in the hallway of § 87(2)(b) told § 87(2)(b) that if he lied about the gun, and they discovered that he lied, they would take § 87(2)(b) and § 87(2)(b) to Central Booking. § 87(2)(b) did not know which officer made this statement.

§ 87(2)(b) stated that his brother, § 87(2)(b) had a gun in the house. The officers told § 87(2)(b) to “come clean” because if they found it without § 87(2)(b) telling them, then he, his brother and father were all going “down for the same gun.”

§ 87(2)(b) did not hear an officer threaten anyone with arrest and § 87(2)(b) did not observe this portion of the incident.

PO Mahmud and Det. Francis denied they threatened to arrest § 87(2)(b) or § 87(2)(b). PO Mahmud, PO Agosto nor Det. Francis heard an officer do so. Det. Francis nor PO Agosto remembered an officer telling § 87(2)(b) that if he had a gun in the house, to tell them about it, or § 87(2)(b) and § 87(2)(b) would “go down for the same gun.”

Sgt. Ayala told § 87(2)(b) that he needed to come clean, because if they found the illegal firearm, § 87(2)(b) and § 87(2)(b) would go down for the same gun. Sgt. Ayala made this statement because if § 87(2)(b) took ownership of the firearm, then he would be arrested for it. If he did not take ownership of the firearm then policy dictated § 87(2)(b) and § 87(2)(b) would be arrested because they were all residents of § 87(2)(b).

Search warrant § 87(2)(b) stated there was probable cause to believe one 45-caliber semi-automatic pistol would be found inside of § 87(2)(b) in Brooklyn (BR05).

Property invoice number § 87(2)(b) noted that a 45-caliber pistol was seized and vouchered under arrest evidence. This firearm did not have an active license associated with it (BR08). A person is guilty of criminal possession of a weapon in the third degree when a person possesses any firearm, Penal Law Section 265.02 (BR07).

§ 87(2)(g)
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Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR09).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR10).
- Sgt. Ayala has been a member of the NYPD for ten years and has been a subject in nine complaints and 25 allegations, three of which were substantiated.”
 - Case number 201802614 involved substantiated allegations of a stop against Sgt. Ayala. The Board recommended Command Discipline A and the NYPD has not yet imposed discipline.
 - § 87(2)(g)
- Det. Francis has been a member of the NYPD for nine years and has been subject in five complaints and 13 allegations, two of which were substantiated.
- :

- Case number 201408251 involved substantiated allegations of force and discourtesy against Det. Francis. The Board recommended command discipline A and the NYPD imposed Command Discipline A.
- § 87(2)(g) [REDACTED]
[REDACTED].

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- On October 4, 2019, a Notice of Claim was requested from the New York City's Comptroller's Office. The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date